DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

Memorandum

To: Governing Body, Phoenix Indian Medical Center

From: Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™

Title: GS-0610-12 Nurse Consultant, Policy and Procedure Officer

Subject: Escalation of Violations of 5 U.S.C. § 2302(b), Federal Regulations, and Internal Compliance Directives

Date: May 30, 2025

I. PURPOSE

This memorandum is submitted to formally notify the Governing Body of Phoenix Indian Medical Center (PIMC) of serious and ongoing failures in regulatory compliance, violations of federal law, and retaliatory conduct carried out against me as a federal employee performing legally protected duties. These matters implicate institutional accountability, federal oversight obligations, and may trigger civil, criminal, or regulatory liabilities if left unaddressed.

II. STATUTORY FRAMEWORK: PROHIBITED PERSONNEL PRACTICES

Under **5 U.S.C. § 2302(b)**, federal agencies and their employees are prohibited from:

- **(b)(8)**: Retaliating against any employee for disclosing information which they reasonably believe evidences a violation of law, rule, or regulation, gross mismanagement, gross waste of funds, abuse of authority, or substantial and specific danger to public health or safety;
- **(b)(9)**: Retaliating for filing complaints or grievances, or for cooperating with or refusing to obey an order that would violate a law;
- **(b)(12)**: Taking actions that violate merit system principles or unlawfully interfere with oversight or compliance roles.

III. SUMMARY OF PROTECTED DISCLOSURES

Since March 2023, and continuing through 2025, I have made a series of **protected disclosures**, including but not limited to:

1. **Sexual Harassment Complaint (March 2023)** — Escalated complaint against the Chief Nursing Officer;
2. **Sentinel Event Reporting Deficiencies** — Documented Joint Commission and CMS violations;
3. **Radiation Safety Officer (RSO) Noncompliance** — Cited breaches of 29 C.F.R. § 1910.1096 and 10 C.F.R. § 35.50;
4. **Suppression of Reports to Governing Body** — Documented efforts by executive leadership to prevent oversight;
5. **Repeated Legal and Compliance Objections** — Including direct citation of applicable federal laws and policies;
6. **Formal Complaints Filed with HHS OIG and the U.S. Office of Special Counsel (OSC)** — Including active case filings:
    - DI-25-001642
    - MA-25-004957

These are protected activities under federal whistleblower law and internal HHS/IHS policy.

IV. RETALIATORY CONDUCT

Following these disclosures, I was subjected to retaliatory actions, including:

- **Immediate reassignment and involuntary leave** in March 2023 after filing a sexual harassment complaint;
- **Reassignment to Policy Officer** role that appeared constructive and lateral but significantly reduced patient care oversight duties;
- **Exclusion from PolicyStat workflow in May 2025**, after more than a year of uncontested participation;
- **Formal written request to leadership on April 2, 2024** requesting clarification of duties — never challenged or denied;
- **Suppression of sentinel event policy reporting** by directive from executive leadership;

- **Circulation of an OGC memo implying I lacked authority to raise legal issues**, used to undermine my compliance role;
- **Marginalization, exclusion from policy and quality council meetings**, and active blocking of routine oversight functions.

The temporal sequence of these events—especially the delayed removal from workflows after protected disclosures—demonstrates a clear pattern of reprisal.

V. FEDERAL AND AGENCY LAWS VIOLATED

These events collectively violate the following authorities:

- **5 U.S.C. § 2302(b)(8), (9), (12)** — Prohibited Personnel Practices;
- **41 U.S.C. § 4712** — Protections for disclosures by Contracting Officer's Representatives (CORs);
- **29 C.F.R. § 1910.1096** — OSHA ionizing radiation protection requirements;
- **10 C.F.R. § 35.50** — NRC training requirements for RSOs;
- **Arizona Admin. Code § R9-7-1120** — State RSO designation standards;
- **42 U.S.C. § 2000e-3(a)** (Title VII) — Retaliation for opposing sexual harassment;
- **18 U.S.C. § 1001** — Potential false statements to a federal agency.

Internal Violations:

- **HHS Human Resources Manual** – Employee Conduct and Anti-Retaliation Guidelines;
- **Indian Health Manual**:
  - Part 1, Chapters 4 & 5 – Ethics and Conduct;
  - Part 3, Chapter 26 – Safety event oversight and compliance mandates;
  - Part 7, Chapter 1 – COR Oversight Duties;
- **PIMC Policy 9897096** – Radiation Safety & Monitoring Policy.

VI. HHS AND IHS ANTI-RETALIATION GUIDANCE

Both the U.S. Department of Health and Human Services and the Indian Health Service maintain strict policies against retaliation for protected disclosures. These policies affirm that retaliation

can occur via reassignment, suppression, denial of access, exclusion from key duties, or administrative marginalization. Such conduct has occurred in my case repeatedly.

VII. PENDING OSC CASES

I have filed two formal whistleblower complaints with the **U.S. Office of Special Counsel**, which are currently under review:

- **DI-25-001642**
- **MA-25-004957**

I have also reported related issues to the **HHS Office of Inspector General**.

VIII. RETALIATION FOLLOWING SEXUAL HARASSMENT COMPLAINT

In **March 2023**, I formally escalated a **sexual harassment complaint** involving the **Chief Nursing Officer**.

Within hours, I was:

- Removed from my position as **Manager of the Patient Centered Medical Home (PCMH)**;
- Placed on involuntary leave of absence;
- Upon return, reassigned to the **Policy Officer** role.

Despite my formal request on **April 2, 2024** for clarification of duties in this new role, leadership took no action to restrict or correct my workflow access for over a year. It was not until **May 28, 2025**, following multiple protected disclosures, that I was **suddenly removed from the PolicyStat system**—a retaliatory action not supported by policy or fact.

IX. CORRECTIVE ACTION REQUESTED

I respectfully request that the Governing Body take the following immediate actions:

1. **Acknowledge the protected nature** of all disclosures and preserve related documentation;
2. **Direct a formal internal review** of retaliatory conduct by senior leadership;

3. **Reinstate my full workflow access** in PolicyStat as Policy Officer;
4. **Ensure future protection** from reprisal under 5 U.S.C. and 41 U.S.C.;
5. **Refer suppression of sentinel event reporting** to external oversight as needed;
6. **Notify relevant federal authorities** (OIG, OSC, CMS, NRC) of these matters if necessary.

X. CONSEQUENCES OF GOVERNING BODY INACTION

Failure to act on this matter may result in:

- Federal investigations;
- Loss of accreditation (e.g., CMS, Joint Commission);
- Civil liability under federal whistleblower law;
- Further institutional damage and public safety risks.

XI. LEGAL NOTICE OF PROTECTED DISCLOSURE

This memorandum is submitted in **good faith** and in accordance with my duties as a federal employee, Policy Officer, and Contracting Officer's Representative (COR). It is a **legally protected disclosure** under 5 U.S.C. § 2302(b), 41 U.S.C. § 4712, and Title VII. Any further retaliation will be documented and pursued accordingly.

The Governing Body is hereby placed on formal notice that it holds the final institutional responsibility for ensuring these matters are addressed promptly, lawfully, and without further harm to public safety or employee rights.

As the governing authority, you are obligated under CMS Conditions of Participation, Joint Commission accreditation standards, and federal agency policy to investigate credible compliance allegations and ensure protection of whistleblowers from reprisal

All recipients of this memorandum are hereby notified of their duty to preserve all documents, emails, records, notes, meeting materials, and other information—whether electronic or physical—pertaining to the matters raised herein, including internal deliberations or decisions related to policies, personnel actions, compliance responsibilities, and whistleblower disclosures.

I certify that the foregoing is true and correct to the best of my knowledge, understanding, and belief.

Respectfully submitted,

Digitally signed by Kevin D. Turnage -S
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CC:

- **Chief Executive Officer, Phoenix Indian Medical Center**
- **Deputy Chief Executive Officer, Phoenix Indian Medical Center**
- **Chief Executive Officer, Phoenix Area Indian Health Service**
- **Director, Office of Quality, Phoenix Area IHS**
- **Chief of Staff, Phoenix Indian Medical Center**
- **Chairperson, Governing Body, Phoenix Indian Medical Center**
- **Office of General Counsel, U.S. Department of Health and Human Services**
- **Office of Inspector General, U.S. Department of Health and Human Services**
- **Office of Special Counsel (OSC),**
- **U.S. Merit Systems Protection Board**
- **Office of Human Resources, Phoenix Indian Medical Center**
- **Compliance Officer, Phoenix Indian Medical Center**
- **U.S. Senator Mark Kelly**
- **U.S. Senator Ruben Gallego**
- **U.S. Representative Andy Biggs (AZ-05)**
- **U.S. Senate Committee on Indian Affairs**
- **U.S. Senate Committee on Health, Education, Labor, and Pensions (HELP)**
- **U.S. House Committee on Oversight and Accountability**
- **U.S. House Committee on Energy and Commerce – Subcommittee on Health**